

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404773	MARTINEZ vs FORD MOTOR COMPANY	MOTION FOR RELIEF

Tentative Ruling:

The motion for relief is denied.

“Counsel’s error did not deprive [plaintiff] of her “day in court.” [Citation.] [She] had her day in court and consequently settled her case as the prevailing party. What she lost, for lack of a better word, was the opportunity to file and litigate her motion for attorney fees and costs before the court dismissed her settled case.” (*Hernandez v. FCA US LLC* (2020) 50 Cal.App.5th 329, 338.) As the *Hernandez* court recognized, this is not the type of dismissal for which mandatory relief is available.

Moreover, the court does not grant discretionary relief as it is unclear what the actual error is, where, as here, it is claimed that there was a calendaring error for the OSC re Dismissal hearing date. However, if the dismissal was June 30, a timely motion for attorney fees could have still been filed afterwards. Moreover, Plaintiff claims the court retained jurisdiction pursuant to Code of Civil Procedure section 664.6, so the court finds no reason to grant the relief requested for the stated purpose it is requested for.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405945	TREMONT RANCH PROPERTY OWNERS ASSOCIATION vs ORBIS FINANCIAL, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing on the motion is continued to September 8, 2026, at 8:30 a.m., to consider the opposition. A reply brief may be filed five days before the continued hearing date. Other than the reply, no further briefing is permitted.